



Superior Court of California County of San Benito

Tentative Decisions for September 2, 2026

Courtroom #1: Judge J. Omar Rodriguez

FL-24-00129 Ceja, Veronica Soledad vs. Cortes Ruiz, Victor Manuel

Petitioner's Request for a Protective Order pursuant to Code of Civil Procedure section 2033.080 is DENIED. The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code of Civ. Proc. §2033.080.) Here, Petitioner seeks a protective order on the ground that Respondent's 35 Requests for Admissions are oppressive or unduly burdensome. However, Respondent has declared that he propounded the discovery requests to discovery whether Petitioner acquired specific properties during a period of time that exceeded 10 years.

FL-24-00219 Grow, Steven vs. Grow, Heidi

Respondent's Request for Order for Spousal Support is DENIED. Family Code section 3600 authorizes the Court, during the pendency of a dissolution proceeding, to order one spouse to pay the other spouse any amount that is necessary for support. California courts recognize that temporary support is based on need and ability to pay, and that the court may consider the broader financial picture, including the marital standard of living and the resources available to the parties. (see *In re Marriage of Murray* (2002) 101 Cal.App.4th 581.)

Here, Respondent's own reported income and assets show that she has independent means of support. In 2025, Respondent reported \$7,461.00 per month from National Storage Trust and \$1,912.00 per month in dividends and interest, in 2025, but now asserts that she is receiving \$4,333 per month and \$3,451 from those respective sources which total \$7,784 a month, while Petitioner reports his monthly income is \$9,481.

Respondent's Request for Order to Compel Further Responses to Form Interrogatories (Set One) and to Compel Further Responses to Requests for Production of Documents is DENIED as moot. The motion is moot to the extent that the request sought to compel further response. Petitioner subsequently served supplemental responses. Although Respondent contends the responses are inadequate, the separate statement that was provided is no longer current.

The court shall impose monetary sanctions against a party, person or attorney who unsuccessfully makes or opposes a motion to compel, unless the court finds that a party acted with substantial justification or other circumstances that make the imposition of the sanction unjust. (Cal. Code of Civ. Proc. §§2030.290, 2031.300.) California Rules of Court Rule 3.1348 states "(t)he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed." Here, although it is apparent that the motion to compel led to the further response, the court finds that Petitioner acted with substantial justification especially in light of his health issues to provide adequate discovery responses.

FL-24-00082 Vazquez, Martina vs. Damian, Luis E

Petitioner's Request for Order Requesting Spousal Support and Attorney's Fees is GRANTED.

Petitioner's request for spousal support is granted. Respondent is ordered to pay spousal support in the amount of \$965 per month. One-half of the payment is due on the first of each month and one-half of the payment is due on the fifteenth of each month. The order is effective June 18, 2026. Arrears are payable at a rate of \$100 per month. One-half of the payment is due on the first of each month and one-half of the payment is due on the fifteenth of each month.